

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:

[Signature]
Date: 1/28/19
Engineering

Contract Modification: #2
Project: Consultant Services – Cheyenne Municipal Court
Project Number: Contract #6892
Contractor: Noel Griffith Jr. & Associates Architects
Date Prepared: 1-2-2019

The above reference contract is hereby modified in the manner set forth in the following and such amendments and modifications are agreed to by the undersigned, being parties to this contract and agreement. All other aspects of the agreement remain unchanged and in full force and effect.

I. Description of Changes:

Original Contract Amount: \$697,500
Modification #1: 331,100
Modification #2: 95,700
New Contract Total: \$1,124,300

II. Summary:

This modification adds architectural and engineering services for the finish of the second floor to the Cheyenne Municipal Court Project. The second floor will be designed to accommodate the following suites of offices: Mayor's Office, City Attorney's Office, and City Council. The attached Exhibit A describes the increase in scope of design services. The total cost of this contract will not exceed \$1,124,300 without a written change order signed by both parties.

III. Approvals

Date: _____

City of Cheyenne

Mayor Marian J. Orr

/_____
/ATTEST: City Clerk Kristina F. Jones

Recommend Approval by Public Works Director



January 17, 2019

Vicki Nemecek
Public Works Director, City of Cheyenne
2101 O'Neil Ave, room 210
Cheyenne, Wyoming 82001

RE: SECOND LEVEL OF THE COURTS BUILDING, 308 WEST 17TH STREET

Dear Vicki,

We are pleased to provide you with a proposal for providing Architectural and Engineering Services for the finish of the 2nd floor at 308 West 17th Street as an amendment to our contract #6892 for the Cheyenne Municipal Courts Project.

Project Understanding

The City of Cheyenne would like to occupy the 2nd floor of the Cheyenne Municipal Courts Building. In an effort to be good stewards with tax dollars, the City is attempting to incorporate the construction of the finish of the 2nd Floor with the Cheyenne Municipal Courts Project (the main level of the same building). In order to achieve this task, the 95% Construction Drawings for the 2nd floor finish would need to be complete by March 18, 2019 and the final Construction Drawings submitted April 22, 2019.

Although there are initial concepts of which City Departments will be occupying the 2nd floor, a final determination has not been made. The City has requested architectural assistance to help identify spatial considerations for 3 to 4 City Departments being considered for relocation to the 2nd floor. The City will then determine what Departments are to be included in the final design and the Design Team will provide full architectural and engineering services to complete Construction Documents for the finish of the 2nd floor.

Increase in Scope of Design Services

Our proposal is based upon the following:

1. Preliminary discussions with the City regarding the possibility of finishing the 2nd floor of the Cheyenne Municipal Courts Project.
2. There will be four (4) City Departments that will be evaluated for the possibility of relocating and incorporation into this Project.

Architectural

1. Provide Programming Services for the City Departments as described above.
2. Provide Schematic Design illustrating the spatial considerations and relationships for the City Departments being considered for relocation as described above.
3. Provide Design Development Services and Construction Documents.

Mechanical + Electrical

1. HVAC design for finishing of the 2nd floor.
2. Plumbing design for the new plumbing fixtures for the 2nd floor. Fixture counts to be determined by the Architect.

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3. Division 22 and 23 plumbing and HVAC specifications.
 4. Responses to authority having jurisdiction plan review comments.
 5. Comcheck mechanical and electrical energy code compliance form.
 6. Review of the mechanical submittals.
 7. Review the final test & balance report.
 8. Electrical design of service and distribution for the 2nd floor.
 9. Electrical design for lights, receptacles, data, and HVAC associated with the 2nd floor finish.
 10. Review of the electrical submittals

Construction Administration Services

We include shop drawing review, responding to contractor requests for information (RFIs), assisting in responding to change proposal requests (CPRs) and site visits as required for observation/questions.

Adjusted Compensation

The Proposed Architectural and Engineering Fees associated with the 2nd floor were included in the Preliminary Cost Model (August 20, 2018). The increase in fees to include the design for the finishing of the 2nd floor is **\$95,700.00** (Ninety-Five Thousand Seven Hundred Dollars and Zero Cents).

Reimbursable Expense

Refer to original contract.

Schedule

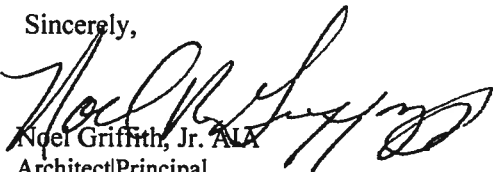
The Project Team's goal is to provide 95% Construction Drawings on March 18, 2019 and the final Construction Drawings April 22, 2019.

Additional Services

Scope change initiated by the Client will be regarded as additional services with compensation negotiated on a case-by-case basis. Such scope change may include:

- Engineering design team coordination to support independent, third party commissioning.
- Preparation of record drawings.
- City Fiber Optic Design
- Extended Site Requirements for the City

Sincerely,



Noel Griffith, Jr. AIA
Architect/Principal
noel griffith jr. & associates architects

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:

[Signature]
Date: 10/16/18

Contract Modification: #1
Project: Consultant Services – Cheyenne Municipal Court Engineering
Project Number: Contract #6892
Contractor: Noel Griffith Jr. & Associates Architects
Date Prepared: 10-10-2018

The above reference contract is hereby modified in the manner set forth in the following and such amendments and modifications are agreed to by the undersigned, being parties to this contract and agreement. All other aspects of the agreement remain unchanged and in full force and effect.

I. Description of Changes:

Original Contract Amount: \$697,500
Modification #1: 331,100
New Contract Total: \$1,028,600

II. Summary:

This modification adds design of a second level (shell and core) to the Cheyenne Municipal Court Project as approved per Resolution No. 5951, A Resolution Acknowledging Receipt of the Preliminary Cost Models for a Second Level on the Cheyenne Municipal Court Building to be Located at 308 West 17th Street and Supporting the Dedication of the Funds to Design and Build a Second Level on the Cheyenne Municipal Court Building, dated September 24, 2018. The attached Exhibit A describes the increase in scope of design services. The total cost of this contract will not exceed \$1,028,600 without a written change order signed by both parties.

III. Approvals

Date: Nov. 14, 2018

City of Cheyenne

[Signature]
Mayor Marian J. Orr

[Signature]
/ATTEST: City Clerk ~~Carolyn Kofner~~
Deputy, Kylie Soden

[Signature]
Recommend Approval by Public Works Director

[Signature]
Consultant



October 5, 2018

Vicki Nemecek
Public Works Director
City of Cheyenne
2101 O'Neil Ave Room 210
Cheyenne, WY 82001

RE: Modification Proposal to Contract #6892
Cheyenne Municipal Courts Building – 2nd Floor

Dear Vicki,

We are pleased to provide you with a proposal to address the increase in our Scope of Work pursuant to our Contract #6892 to accommodate the City's decision to add a second-level to the Cheyenne Municipal Courts project located at 308 West 17th Street.

Project Understanding

The City of Cheyenne wishes to add the design of a second level (shell and core) to the Cheyenne Municipal Court Project. Noel Griffith Jr. & Associates Architects is currently under contract with the City (#6892) for the design of the single-level Municipal Courts.

Increase in Scope of Design Services

Our proposal for the second level is based upon the following:

1. Preliminary Cost Model dated August 20, 2018.
2. City Council discussion October 24, 2018.
3. The tenant/occupant of the second level will be a City Entity.
4. Investigate integrating historical elements in the exterior façades.
5. Design of Shell and Core Only for the Second Level.
 - a. The design and construction of the exterior facades (both first and second levels) including all exterior materials to complete the exterior appearance, exterior windows, insulation, and vapor barrier. Interior drywall on the exterior walls of the second level will only be installed to the extent required by code for fire-walls, separations, etc. The exterior walls of the second level will not include electrical power, IT or AV.
 - b. The floorplan for the second level will include elevator, stairwells, mechanical, electrical, IT and restroom locations. General layout of interior walls or partitions will not be designed or constructed for the second level.
 - i. The mechanical, electrical and IT designated areas/rooms on the second level will be designed and finished for the installation of the

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- equipment necessary for the main level to function as the Municipal Courts and the minimal requirements for the un-finished, limited function of the unfinished second level. No additional electrical power, IT or AV will be designed or installed on the second level.
- ii. Plumbing rough-ins for the second-floor restrooms will be completed to reduce the impact on the main level in the future finish of the second floor. Plumbing fixtures, partitions, finishes, etc. will not be designed, specified, provided or constructed for the second level.
 - iii. Mechanical HVAC will provide the minimal required conditioned air to the second level. No major ductwork, branch lines or diffusers will be designed or installed on the second level.
- c. Interior stair and elevator cores will be rated as required.
- i. The elevator will be installed and the interior of the cab and exterior of the elevator doors will be finished. The elevator will have restricted access to prevent unauthorized usage to access the second level.
 - ii. One (1) stairwell will be installed and available for egress requirements from the second level, however it will have restricted access to prevent unauthorized usage to access the second level. This stairwell will not include final interior finishes or lighting fixtures.
 - iii. One (1) stairwell will be installed and finished with final interior finishes and lighting fixtures. This stairwell will be available for egress requirements from the second level, however it will have restricted access to prevent unauthorized usage to access the second level.
- d. Poured concrete deck floor will be provided with no floor coverings on the second level.
- e. Minimal lighting to meet lighting requirements will be provided on the second level. The lighting fixtures that will be installed on the second level will not be the final light fixtures, they will be low cost strip lighting.
- f. No ceilings will be installed on the second level, the structure above will be exposed with measures to meet fire rating requirements.
- g. The Fire Sprinkler and Fire Alarm systems will be designed and provided as required on the second level.

Adjusted Compensation

As included in the Preliminary Cost Model (August 20, 2018), the increase in architectural and engineering fees for the second level shell and core design is **\$331,100.00** (Three-Hundred-Thirty-One Thousand and One Hundred Dollars).

Schedule

Final schedule will be coordinated with the Construction Manager at Risk (CMAR).

Additional Services

Scope change initiated by the Client will be regarded as additional services with compensation negotiated on a case-by-case basis. Such scope change may include:

- Occupying the second-level with a tenant other than a City Entity.
- Designing and constructing the interior of the second-level (*refer to Preliminary Cost Model letter dated August 20, 2018*).

If there are any questions regarding the change in Scope of Work or our proposed compensation, please do not hesitate to contact me.

Sincerely,

Noel Griffith, Jr. AIA
Architect/Principal
noel griffith jr. & associates architects

akw

Date: 7/18/18

City Contract # 6892

**PROFESSIONAL SERVICES AGREEMENT
for
Analytical and Design Engineering
for the Construction of a New Municipal Court**

THIS AGREEMENT is made and entered into this 13th day of August, 2018, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Noel Griffith Jr. & Associates Architects, located at 2515 Warren Avenue, Suite 504, Cheyenne, Wyoming 82001 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK.

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE.

The work included in this Scope of Work will be completed by April 28, 2021. The services will be completed within the stipulated period indicated in the attached Exhibit C, Project Schedule, incorporated by reference and expressly made a part hereof.

3. CONSULTANT RESPONSIBILITY.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

4. COMPLIANCE WITH LAWS.

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. DRUG-FREE WORKPLACE.

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the

provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. INDEMNIFICATION/HOLD HARMLESS.

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. INSURANCE REQUIREMENTS.

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES. 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
9. COMPENSATION.
In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Six Hundred Ninety-Seven Thousand Five Hundred Dollars (\$697,500.00). The Compensation Schedule is attached as Exhibit B, incorporated by reference and made a part hereof.
10. MONTHLY REPORT.
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT.
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES.
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT.
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES.
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION.

This Agreement shall be for a period from August 15, 2018 to April 28, 2021. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty (30) days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES.

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE.

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY.

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES.

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and

consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. NON-DISCRIMINATION.

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. PROFESSIONAL REGISTRATION.

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. ENTIRETY OF AGREEMENT.

This Agreement consisting of six (6) pages, Exhibit A consisting of five (5) pages, Exhibit B consisting of one (1) page, Exhibit C consisting of one (1) page, and Exhibit D, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

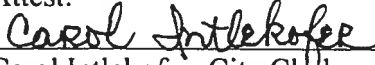
CITY OF CHEYENNE

By: 
Marian J. Orr, Mayor

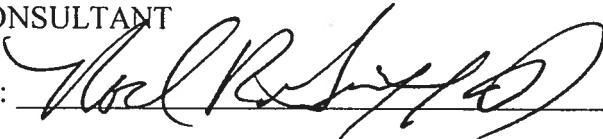
Date: 8.14.18

(SEAL)

Attest:


Carol Intlekofer, City Clerk

CONSULTANT

By: 

Print Name: NOEL R GRIFFITH JR.

Date: AUG 14-2018

EXHIBIT A

SCOPE OF WORK

I. PROJECT DESCRIPTION.

The responsive proposal from Noel Griffith, Jr. & Associates Architects is attached as Exhibit D, incorporated by reference and expressly made a part hereof. To the extent that this Agreement and RFP-3-18 are in conflict, this Agreement shall control.

A. Introduction and Background.

On May 2, 2017, the City of Cheyenne approved a 1% Specific Purpose Sales and Use Tax (6th penny) for the design and construction of a new City of Cheyenne Municipal Court.

Consultant will:

1. Present building design options for the City's consideration for construction of a new Municipal Court at 308 West 17th Street, Cheyenne, Wyoming, and provide a full design of approved option. The Scope of Work is based on the following preliminary assumptions: designing a single level, above grade structure (no basement or crawl space); utilizing industry standard exterior design elements and construction materials; and a single tenant building. Project is not pursuing a historic rehabilitation or historic replica and not seeking LEED accreditation at this time.
2. Assist the City with demolition and hazardous waste removal management.
3. Assist City staff in preparing the RFP for Construction Manager at Risk (CMAR) proposals, and assist in the CMAR selection.
4. Work with the CMAR during project design as the CMAR develops project estimates and final GMP to remain in project budget.
5. Meet with City staff and the CMAR to review the GMP proposal.
6. Meet with City staff and the CMAR to review qualifications of prospective sub-contract bidders, and to review sub-contract bids.
7. Participate, in conjunction with CMAR, in preparation of cost estimates in all phases of design.

B. Project Objectives.

The objectives of this project are:

1. Present design options to the City for construction of a new Municipal Court and prepare a full design of approved option. The Project Objectives are based on the following preliminary assumptions: designing a single level, above grade structure (no basement or crawl space); utilizing industry standard exterior design elements and construction materials; and a single tenant building. Project is not pursuing a historic rehabilitation or historic replica and not seeking LEED accreditation at this time.
2. Assist the City with demolition and hazardous waste removal management.
3. Assist the City with the selection and hiring of a CMAR.
4. Prepare construction bidding documents as required by City of Cheyenne's Purchasing Office if not included in the CMAR.
5. Perform construction administration of the building at an hourly rate. (Mileage and drive time to and from location may not be added to the cost of construction administration hourly rate.)

C. Scope of Services.

The minimum scope of services related to this project include the following:

1. The Consultant shall meet with City staff to gain an understanding of the desired work. The Scope of Work is based on the following preliminary assumptions: designing a single level, above grade structure (no basement or crawl space); utilizing industry standard exterior design elements and construction materials; and a single tenant building. Project is not pursuing a historic rehabilitation or historic replica and not seeking LEED accreditation at this time.
2. Assist the City with demolition and hazardous waste removal management.
3. The Consultant shall Issue an RFP for a CMAR, interviewing and selecting a CMAR.
4. The Consultant shall be responsible for completing a full design for the new Municipal Court.
5. The Consultant shall prepare an operations manual to ensure optimal operations of the facility. Suggested comments and additions should be provided by the Consultant to enhance the City's ability to operate the facility in an efficient and safe manner.

6. The Consultant shall meet on a bi-monthly, or as needed basis, with City staff during the design phase and during the Construction Administration phase.

D. Sub-Consultants.

The Consultant shall be responsible to retain and pay for the services of any sub-consultant necessary to complete the work. The City and the Consultant shall mutually agree to the use of any sub-consultants which the Consultant desires to retain.

E. Meetings.

The Consultant shall meet with members of the City staff at least on a bi-monthly basis during design phase and on a weekly basis during the construction administration phase to keep all current on the progress of the project. The Consultant may also be required to meet with the City Council to discuss the project or recommendations.

II. PROJECT BUDGET.

The total budget for the project includes design, City of Cheyenne bidding process, new Municipal Court design and construction, and Construction Administration on a hourly basis. Total funding from the 1% Specific Purpose Sales and Use Tax is \$9,000,000.00. The total cost of the Municipal Court shall not exceed the \$9,000,000.00 unless expressly agreed to in writing by the City of Cheyenne Governing Body.

III. GENERAL CONDITIONS.

The following items are considered to be included as part of the basic compensation for this project:

- A. Normal business expenses, i.e., phone, postage, etc.
- B. Cost of insurance.
- C. In-house computer time and service.
- D. Word processing, accounting, and man-hour records.
- E. Permits and license fees.
- F. Mileage.
- G. Travel fees, room and board, per diem.
- H. Printing costs for all standard review and as-constructed plans and other correspondence and contract documents.

I. Overtime engineering and inspection.

Any changes in the Consultants or sub-consultants staff or fee structure shall be presented in writing to the City for approval prior to initiating any changes or performing any work.

IV. PRELIMINARY DESIGN PHASE.

Upon receipt of Notice to Proceed with this project, the Consultant shall proceed with the following tasks:

- A. Furnish five (5) copies of the preliminary design for review by the City of Cheyenne.
- B. Obtain a CMAR.
- C. Advise City of estimated Project Cost. The Consultant shall provide a summary of the probable Project Cost based on the Preliminary Design Drawings and Specifications showing estimated construction quantities, estimated bid prices, and items of work. The bid tabulation shall be laid out using standard numbering for work items and basic pay units.

The services will be completed and the data submitted within the stipulated period indicated in Exhibit C, Project Schedule.

V. FINAL DESIGN PHASE.

The City of Cheyenne will review the preliminary design and cost estimate. The City of Cheyenne will then provide Consultant with comments, suggestions and/or modifications. The Consultant will, upon receipt of written authorization from the City of Cheyenne, proceed with final design and shall:

- A. Prepare final drawings showing the character and extent of the project and specifications incorporating any modifications or changes indicated during review of preliminary documents.
- B. Advise the City of Cheyenne of any adjustments to the latest opinion of estimated project cost caused by changes in extent or design requirements of the project. The Consultant shall provide a summary of the probable project cost based on the Final Design Drawings and Specifications showing estimated construction quantities, bid prices, and items of work. The bid tabulation shall be laid out using standard numbering for work items and basic pay units.
- C. Furnish five (5) copies of the above final design documents then present and review them in person with the City of Cheyenne.

VI. CONSTRUCTION ADMINISTRATION PHASE.

- A. Prepare City of Cheyenne Bidding and Construction documents with a CMAR.
- B. Conduct a Pre-Bid meeting to answer questions associated with the project.
- C. Review all submitted bids and provide the City of Cheyenne with a detailed analysis. Include a recommendation of responsible successful bidder.
- D. Attend City Council and Finance Committee meetings (as necessary) to provide detailed information on successful bidder's documentation.
- E. Administer, conduct and inspect all work under the City's Bidding and Construction documents. Cost of onsite inspection to be shown as a separate itemized hourly price.
- F. Conduct training for City personnel on operations and maintenance at the new Municipal Court.

The services will be completed and the data submitted within the stipulated period indicated in Exhibit C, Project Schedule.

EXHIBIT B

COMPENSATION SCHEDULE

The Consultant shall prepare and submit proposed estimated compensation, bearing in mind that it should be a unit-based contract with a negotiated not-to-exceed amount. A Compensation Schedule based upon the following and any other pertinent payment schedule shall be submitted with payment for a specific phase not exceeding the scheduled amount prior to completion of that phase.

CMAR Selection Assistance	\$ 20,000.00
Demolition and Hazardous Waste Removal Assistance	\$ 40,000.00
Preliminary Design	\$ 191,250.00
Final Design	\$ 306,000.00
Construction Administration	\$ 127,500.00 (\$155/hour)
Operations Plan	\$ 12,750.00
Total Contract Amount	\$ 697,500.00

EXHIBIT C

PROJECT SCHEDULE

The key milestones for the **New Municipal Court**.

The designer should complete the following schedule as part of the proposal and include any other required key dates.

<u>Date</u>	<u>Schedule Item</u>
August 15, 2018	Notice-to-proceed issued by City
August 20, 2018	Hold scoping meeting with City Representative
November 1, 2018	Conduct interviews and hire CMAR
November 15, 2018	Submit preliminary design phase documents
November 22, 2018	Meet with City to discuss review of design
March 22, 2019	Submit final design phase documents
March 31, 2019	Conduct Pre-Bid meeting
April 30, 2019	Bid Opening
May 30, 2019	Start Date
April 28, 2021	Completion Date

EXHIBIT D

PROPOSAL FROM NOEL GRIFFITH, JR. & ASSOCIATES ARCHITECTS